Montgomery County District Court

Cause No. 2025-CV-0005

Samuel Carter, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Samuel Carter

Date:	February 26, 2026
Location:	Offices of Gardner & Morris Law Group
Examining attorney:	Richard Marshall, Ashford & Lyle LLP
Defending attorney:	Sergio Acosta, Gardner & Morris Law Group

Q: Please state your full name for the record.

A: I'd rather not give my full name on this record, so just use the plaintiff designation. That's fine, isn't it?

Q: We'll proceed with the designation. Whree were you when the collision occurred?

A: I was in a parking lot in Sugar Land, Texas, at a shopping center. I had just pulled into a space near the entrance.

Q: Describe what you were doing immediately before the impact.

A: I had put the car in park and was gathering my bags from the passenger seat. I wasn't moving at that point.

Q: What happened next?

A: A pickup truck backing out of the space across the aisle struck the driver's side of my vehicle. It wasn't a high-speed impact, but it was enough to push my car sideways into the door frame and the center console.

Q: Did you get out of the vehicle?

A: Yes, but my left knee gave way when I stepped down. I caught myself on the car door. It was painful right away.

Q: Did you seek medical attention that day?

A: Not right away. I thouhgt it would settle down, so I iced it at home. By the next morning it was swollen and I couldn't bend it fully, so I went to urgent care.

Q: What treatment have you received since then?

A: I've had physical therapy two or trhee times a week, and an orthopedic doctor recommended a brace and some restrictions on stairs and kneeling. I still get a sharp pain when I go down stairs.

Q: How has the injury affected your daily routine?

A: I used to walk my dog every morning and go to the gym. Now I limit myself to short walks, and I've had to ask my son to help with grocery trips because carrying bags up the front steps is hard on the knee.

Q: Have you been able to return to work?

A: Yes, I went back to my job, but I sit more than I used to and I take breaks to elevate the leg. Some days are worse than others.

Q: Do you have any prior injuries to that knee?

A: I had a minor sprain playing recreational softball many years ago. It healed fully, and I didn't have problems with it until this collision.